

24PSCV01924 24PSCV01924

County: los-angeles

Division: Civil Law and Motion

Department: G

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Case Number: 24PSCV01924 Hearing Date: July 20, 2026 Dept: G

Defendant

Toby Miclat's Demurrer to Plaintiffs Bernadette Machovec, Paul Machovec, Theresa Machovec, Daniel Machovec, Michael Machovec, David Machovec, and Christopher Machovec's Amended Complaint

Respondent:

Plaintiffs Bernadette Machovec, Paul Machovec, Theresa Machovec, Daniel Machovec, Michael Machovec, David Machovec, and Christopher Machovec

Defendant

Toby Miclat's Motion to Strike Portions of Plaintiffs Bernadette Machovec, Paul Machovec, Theresa Machovec, Daniel Machovec, Michael Machovec, David Machovec, and Christopher Machovec's Amended Complaint

Respondent:

Plaintiffs Bernadette Machovec, Paul Machovec, Theresa Machovec, Daniel Machovec, Michael Machovec, David Machovec, and Christopher Machovec

TENTATIVE

RULING

Defendant

Toby Miclat's Demurrer to Plaintiffs Bernadette Machovec, Paul Machovec, Theresa Machovec, Daniel Machovec, Michael Machovec, David Machovec, and Christopher Machovec's Amended Complaint is CONTINUED.

Defendant

Toby Miclat's Motion to Strike Portions of Plaintiffs Bernadette Machovec, Paul

Machovec, Theresa Machovec, Daniel Machovec, Michael Machovec, David Machovec, and Christopher Machovec's Amended Complaint is CONTINUED.

BACKGROUND

This

is a wrongful death action. On May 1, 2022, plaintiff Bernadette Machovec (Bernadette) moved into Fil-Am Home for Seniors III (Fil-Am Home), a residential care facility for the elderly allegedly operated by defendant Stateside Medical LLC (Stateside) and allegedly owned by Toby Miclat (Miclat), for assisted living and dementia care. On November 26, 2022, Fil-Am Home employees allegedly called emergency services because they found Bernadette lethargic and unresponsive, and nonparty Pomona Valley Hospital allegedly diagnosed Bernadette with multiple face fractures, tissue pressure injuries on her coccyx and right foot, and pneumonia. On November 28, 2022, Bernadette passed away at Pomona Valley Hospital. She is allegedly survived by her children, plaintiffs Paul Machovec (Paul), Theresa Harkness (Theresa), Daniel Machovec (Daniel), Michael Machovec (Michael), David Machovec (David), and Christopher Machovec (Christopher).

On

June 13, 2024, Bernadette (now acting through Paul), Paul, and Theresa (collectively, the Original Plaintiffs) filed the original Complaint. On March 12, 2026, the Original Plaintiffs, Daniel, Michael, David, and Christopher (collectively, the Machovec Family) filed the operative Amended Complaint, alleging causes of action for (1) elder abuse and neglect, (2) negligence, and (3) wrongful death.

On

June 26, 2026, Miclat filed this demurrer with motion to strike to amended complaint. On July 7, 2026, the Machovec Family filed the oppositions, and on July 13, 2026, Miclat filed the replies.

The

demurrer with motion to strike are set for hearing on July 20, 2026.

REQUESTS

FOR JUDICIAL NOTICE

Miclat

requests that the court take judicial notice of the Amended Complaint. The court may take judicial notice of the

records of any California court, including its own. (See Evid. Code, § 452, subd (d)(1).) Thus, the court takes judicial notice of the

Amended Complaint.

Miclat

also requests that the court take judicial notice of a request Plaintiffs'

counsel sent to Fil-Am Home. The court

does not find that the record is encompassed by Evidence Code sections 451 or

452. Thus, the court does not take

judicial notice of the request for records and bills.

ANALYSIS

Miclat

demurs to each of the three causes of action, moves to strike the request for

punitive damages, and moves to dismiss herself from this action. For the following reasons, the court CONTINUES

the demurrer and motion.

Legal

Standard

Pursuant

to Code of Civil Procedure sections 430.41 and 435.5, prior to filing a

demurrer or motion to strike, the demurring or moving party "shall meet and

confer in person or by telephone with the party who filed the pleading that is

subject to demurrer for the purpose of determining whether an agreement can be

reached that would resolve the objections to be raised in the demurrer." (Code Civ. Proc., §§ 430.41, subd. (a);

435.5, subd. (a).) The statutes further

provide that the demurring or moving party "shall identify all of the specific

causes of action that it believes are subject to [demurrer or being stricken]

and identify with legal support the basis of the deficiencies." (Code Civ. Proc., §§ 430.41, subd. (a)(1);

435.5, subd. (a)(1).)

While

the Code of Civil Procedure makes clear failing to meet and confer is not

grounds to overrule a demurrer or deny a motion to strike, courts "are not

required to ignore defects in the meet and confer process" and if the court

determines "no meet and confer has taken place, or concludes further

conferences between counsel would likely be productive, it retains discretion

to order counsel to meaningfully discuss the pleadings with an eye toward

reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort.” (Dumas v. Los Angeles County Bd. of Supervisors (2020) 45 Cal.App.5th 348, 355 & fn. 3.)

Discussion

Miclat’s

counsel provides two declarations with exhibits that demonstrate that they sent a meet and confer letter to the Machovec Family’s counsel and that the Machovec Family’s counsel responded by email. (Hafif-Stonehouse Decl. Re: Dem., ¶¶ 12–13; Hafif-Stonehouse Decl. Re: MTS, ¶¶ 13–14; see also Hafif-Stonehouse Decl. Re: Dem., Exhs. A–B.) However, Miclat’s counsel did not meet and confer in person, by video conference, or by telephone with the Machovec Family’s counsel as required by Code of Civil Procedure sections 430.41 and 435.5.

Therefore,

the court CONTINUES the demurrer with motion to strike and ORDERS Miclat’s counsel to MEET AND CONFER with the Machovec Family’s counsel by telephone, video conference, or in person and FILE a SUPPLEMENTAL DECLARATION describing such meet and confer efforts, including whether the attempts were made by telephone, video conference, or in person, at least nine (9) court days before the next scheduled hearing on the demurrer with motion to strike.

CONCLUSION

For

these reasons, the demurrer with motion to strike is CONTINUED to a date to be determined at the hearing in Department G (Pomona).

Defendant

Toby Miclat’s counsel is ORDERED to MEET AND CONFER with counsel for plaintiffs Bernadette Machovec, Paul Machovec, Theresa Machovec, Daniel Machovec, Michael Machovec, David Machovec, and Christopher Machovec regarding the present demurrer with motion to strike and to FILE a SUPPLEMENTAL DECLARATION describing such meet and confer efforts, including whether the attempts were made by telephone, video conference, or in person, at least nine (9) court days before the next scheduled hearing on the demurrer with motion to strike.